

**To: Ames City Manager Steve Schainker, Ames City Clerk Renee Hall, Ames Zoning Board**  
**From: Naomi Mauss**  
**Date: 10.24.2025**  
**Proposal to introduce an ordinance which would allow for commercial development on certain lots in residential areas**

# Introduction

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This document is a proposal to introduce an ordinance which would allow for commercial development on certain lots in residential areas in order to help the city of Ames meet the goals in its 2040 Comprehensive Plan.

## PURPOSE

The purpose of this project is to broaden zoning restrictions in certain residential areas of Ames to allow for greater economic development and cooperation with the goals of the Ames comprehensive plan.

## SUMMARY

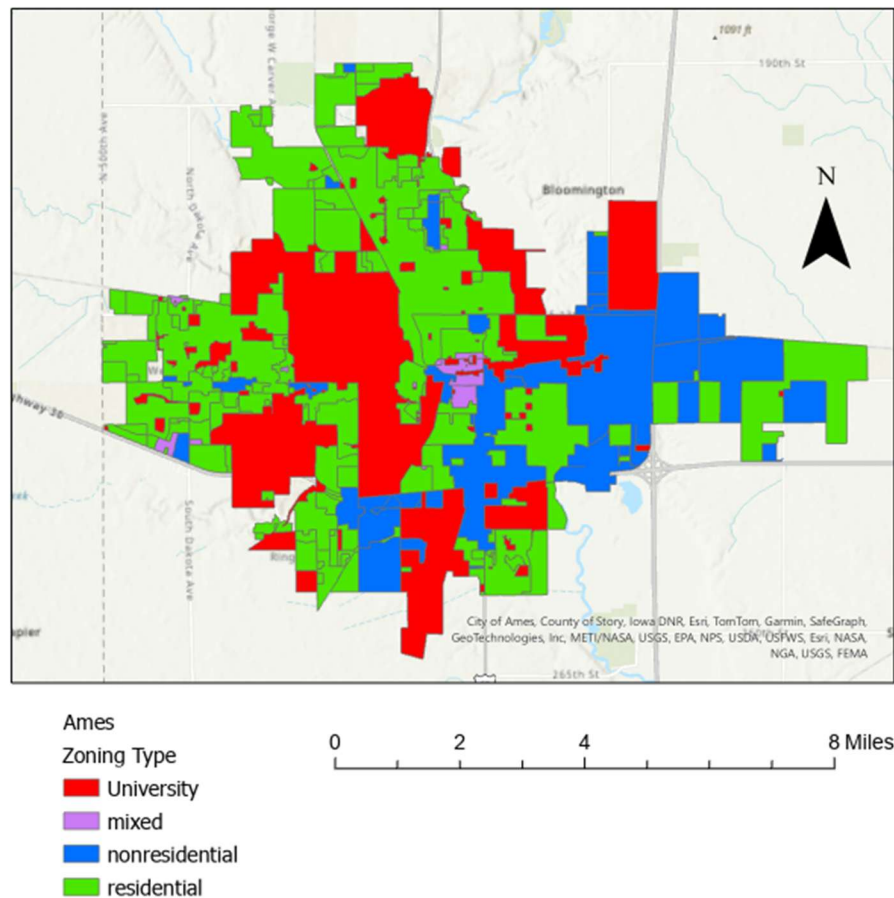
Ames has a goal to encourage mixed use development throughout the city as outlined in their 2040 Comprehensive Plan. Currently, just slightly over 10% of Ames' zoning districts are mixed-use. To increase mixed-use development, some residential zones will need to have an increased commercial presence and commercial zones will need to have an increased residential presence. Adding commercial development to residential zones will likely be a challenge, as there are few empty lots which are large enough to accommodate the kind of groceries and commercial development typically considered beneficial to residential areas.

This proposal is to create a clause in the Ames zoning code to allow residential lots which meet certain specifications to have the opportunity to be converted into commercial development upon submitting a special use permit and getting permission from the Zoning Board of Adjustment. This will create opportunities for potential investors and homeowners to easily identify lots which the city believes are good potential for commercial development in residential zones. The project will take approximately five months to complete and should cost approximately \$191 for mailing notices to residents. The proposed ordinance is attached in Appendix 1 of this proposal and will need review and editing.

## BACKGROUND

In Ames' 2040 Comprehensive Plan, goal G1-5 "Encourage mixed uses, identify locations for focused growth, and provide efficient transportation routes to key community destinations. Minimize community-wide vehicle miles traveled with planned locations for services and jobs related to housing." After classifying Ames zoning districts into the categories of nonresidential residential, mixed, and University, we can see that only 10.3% of the zoning is mixed use, as seen below in Figure 1. Additionally, none of the residential zones permit any mixed-use development, with no option for a special use permit or appeal to the Board of Adjustment.

## Zoning Types in Ames



Zoning Types In Ames  
Figure 1

As seen above in Figure 1, there are significant distances between residential and commercial zones in Ames, especially in areas nearer university zoning. The lack of mixed-use zoning or small pockets of nonresidential zoning means that people will either have to dedicate a significant amount of time using public transport to get groceries or they will use their car to get groceries.

The first option is inconvenient for people, especially if it is a goal to encourage a healthy population which regularly eats fresh fruits and vegetables - that would require even more lengthy trips to the grocery store. The second option of driving their car is opposed to the goal of minimizing vehicle miles traveled. This raises the question - how might Ames encourage mixed-use development in these prominently university and residential areas, in order to meet the goals of Ames' 2040 development plan?

Enterprising companies could all individually find potential lots and apply for these exceptions with the Zoning Board of Adjustment. It is possible for all cases to be considered individually. However, this would take significantly longer and require manhours and money dedicated to each

business that filed an exception. So - how can Ames' problem of lacking mixed-use development be solved with one ordinance, as opposed to with an ordinance for each individual exception?

This problem can be solved in conjunction with a separate issue. That is - 15.2% of housing units in Ames were built before 1950 (ICIP, 1). It is likely that these houses are more likely to be demolished or undergo serious renovation than residences built more recently. Those buildings can be converted more easily into nonresidential establishments, such as corner stores, when they are in this transitory state. Not all older buildings necessarily fall within this category. Clearer requirements are outlined in the Scope section of this proposal. This step has largely already been completed and a list of the identified properties has been attached in Appendix 2.

The most technically difficult part of this proposal would be to write the ordinance, so, as an act of good faith, I have already completed that task. The proposed ordinance is attached in Appendix 1, and the writing has already been completed. The ordinance will need to be edited and the owners of all the properties should be contacted and invited to a meeting where they can voice their thoughts and concerns with this plan. The meeting would be one of the biweekly meetings routinely held by Ames' Zoning Board of Adjustment. (City Manager's Office) This would be done by the city clerk.

### **SCOPE**

This project is meant to create a zoning overlay in Ames to help create mixed-use dwellings. It is not meant to create any dwellings or create any zoning code without the approval of the Board of Adjustment. It is not meant to pressure any homeowners into acting one way or another with regard to how their lots are managed.

The lots selected and shown in this proposal were chosen by considering houses which were appraised at less than \$125,000, which were built before 1950, and which had a lot size of less than 10,000 square feet. The appraisal cost was chosen because it is approximately half of the median cost for a single-family house in Iowa, as stated by Forbes (Forbes, 1).

This is based on the assumption that both houses in poor condition and houses on smaller lots will be appraised to have a lower value. Houses in poor condition fit the parameters of this project. The restriction on lot size was applied because houses with 5 or more dwelling units must be at least 10,000 square feet. There are legitimate concerns that creating one or two story grocery shops might go against the goal to build high-density homes near campus. The lot size restriction means that the identified lots would not qualify for high-density development, negating that concern.

## Tasks

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The majority of the tasks involve conducting meetings to discuss the ordinance and editing the document after meetings to discuss the ordinance.

### **TASK 1:** Edit the ordinance

The ordinance in its current form may need to be edited. For example, the draft ordinance is titled as Ordinance No. 4568. This should be the next number based on the fact that the most recently

submitted ordinance was titled Ordinance No. 4567. However, if there is a separate naming system the city uses to number the ordinances, this will need to be changed. There could be substantive changes made at this time as well.

**TASK 2:** Send a notice to the lot owners for a meeting where they can voice their concerns for the project

Lot owners will need to be informed of the potential changes to the zoning of their property so they can speak about their concerns. To ensure people are aware of the meeting, they will need to be mailed information about the meeting. It should occur at the typical time the Zoning Board of Adjustment holds their routine meetings. Assuming the city has a template to send notices to citizens about meetings that will affect them, the city clerk should send letters to make all of them aware.

**TASK 3:** Hold a meeting with the Zoning Board of Adjustment to discuss thoughts on the ordinance

This ordinance should be introduced to the docket during the Zoning Board of Adjustment's biweekly meetings.

**TASK 4:** Edit the ordinance

During and after the meeting, any edits or suggested changes to the ordinance should be made. This should be a relatively simple task as the document is digital.

**TASK 5:** Hold a public meeting with the lot owners where they can voice their concerns for the project

Citizens deserve to have their voices heard, especially about issues which may affect them or their property. The meeting should make clear that this ordinance would not guarantee that a commercial establishment is created on or near their lots but instead that the owners will have the option of changing the zoning of their lot to commercial in future if this ordinance passes. It would also likely be prudent to clarify with owners that they will not be allowed to live on their lot if they do change the zoning to commercial.

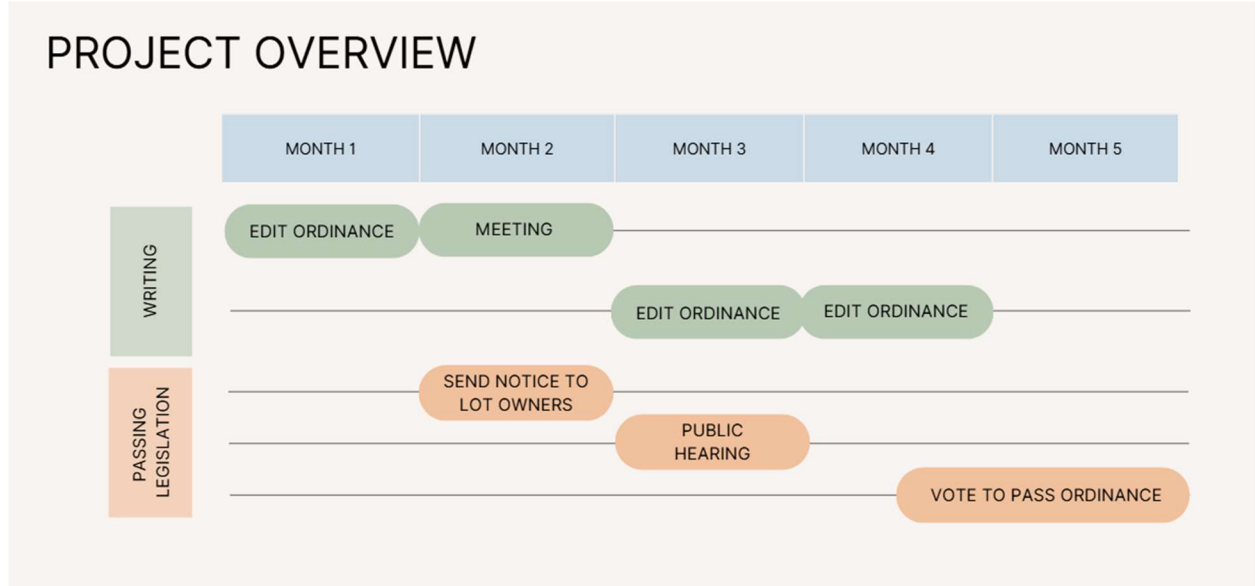
**TASK 6:** Edit the ordinance if any concerns raised by the public at the aforementioned meeting need to be addressed before ordinance can be passed

Again, any edits or suggested changes to the ordinance should be made. If board members feel unsure about the state of the document at this point, discussing the ordinance can be added to the docket of more biweekly meetings until a consensus is reached.

**TASK 7:** Hold a vote to pass the ordinance

Once a consensus is reached, the Zoning Board of Adjustment will need to vote to pass or reject the ordinance. If passed, it will be added to the Ames Zoning Code.

### SCHEDULE



Project Overview  
Figure 2

## Costs

The monetary costs for this project are those associated with sending a notice to the owners of selected lots. The majority of the work will be done by those on the Zoning Board of Adjustment in Ames and by the City Clerk. There will be no upkeep or extended costs.

### PERSONNEL

This project will require a time investment by members of the Zoning Board of Adjustment in Ames.

### FACILITIES/EQUIPMENT

200 pieces of paper  
200 envelopes  
200 stamps

### FISCAL

200 envelopes cost \$12, 200 pieces of standard printer paper cost \$23, and 200 stamps cost \$0.78 \* 200 = \$156. After summing those values, the budget for this project is approximately \$191 dollars, as it does not require any physical development except for sending letters to residents who live on properties that need to be contacted. The only labor required for this project is the necessary consideration and approval of the Zoning Board of Adjustment. This should be covered by the salaries of everyone who works on the Zoning Board of Adjustment.

### TIME

The project is projected to last for five months. This timeline could be shortened if the Zoning Board of Adjustment has no issues with the current draft of the proposed ordinance as attached in Appendix 1, and it could be expanded if greater time is needed to be dedicated to listening to the voices of citizens across Ames and other potential boards.

## Qualifications and Experience

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I worked on the Iowa Zoning Guide with Iowa State Extension and Outreach for fifteen months reading zoning ordinances, comprehensive plans, digitizing city zoning maps, studying theory on zoning, and keeping up to date on recent changes to zoning in prominent cities across America and the Midwest. I have a working knowledge of the Ames zoning code, as well as a personal understanding of the city, having lived here for over three years.

Additionally, I have two years of experience working on GIS (geographic information systems) projects performing data analysis, which is how I generated the map in Figure 1. The majority of the intellectual work required for this project has already been completed, and the only steps left are to edit the document and ensure all relevant parties approve of the proposal. While this is not an insignificant task, I believe there is sufficient evidence in the documents I have created to show that I have the qualifications and experience to complete the necessary intellectual work for this project.

The city clerk and the Zoning Board of Adjustment are both qualified to do the work outlined in this project, as everything written here are part of the job requirements of those positions as written on the Ames city website.

## Conclusion

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### SUMMARY

In its current form, the Ames zoning code is sufficient to allow for mixed-use development but is not set up to allow for commercial entities to easily establish a commercial development in any residential neighborhoods across Ames. This proposal will help the city achieve a mixed-use zoning code which helps encourage a more walkable city, allowing Ames to become more environmentally friendly and better for pedestrians. Additionally, this will help the city achieve its goals for the 2040 Comprehensive Plan. Given these reasons, I ask that the Zoning Board of Adjustment accept the drafted Ordinance No. 4568 to its document and begin the timeline outlined in the Tasks section on page X of this document.

### CONTACT

If you have any questions, please feel free to contact me at my email [nmauss@iastate.edu](mailto:nmauss@iastate.edu) or call me at 999.999.9999.

## References / Work Cited

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## Appendix 1

### ORDINANCE NO. 4568

**AN ORDINANCE TO AMEND THE MUNICIPAL CODE OF THE CITY OF AMES, IOWA, BY AMENDING SECTIONS 29.701, 29.702, AND 39.703 THEREOF, FOR THE PURPOSE OF REQUIREMENTS, OF EXCEPTION TO THE STATUS, APPROVAL REQUIRED, AND APPROVAL AUTHORITY OF RETAIL SALES AND SERVICES - GENERAL AS WELL AS ENTERTAINMENT, RESTAURANT AND RECREATION TRADE, REPEALING ANY AND ALL ORDINANCES OR PARTS OF ORDINANCES IN CONFLICT TO THE EXTENT OF SUCH CONFLICT; AND ESTABLISHING AN EFFECTIVE DATE.**

**BE IT ENACTED**, by the City Council for the City of Ames, Iowa, that:

Section One. The Municipal Code of the City of Ames, Iowa shall be and the same is hereby amended by amending Tables 29.701(2), 29.702(2), and 29.703(2) from Sections 29.701, 29.702, and 29.703, as well as Sections 29.701, 29.702, and 29.703, and 29.707 as follows:

**“Table 29.701(2)  
Residential Low Density (RL) Zone Uses**

(1) **Purpose.** This zone is intended to accommodate primarily single-family dwellings, while accommodating certain existing two-family dwellings and other uses customarily found in low-density residential areas, with exceptions added for mixed-use development deemed in-line with the character of the RL Zone.

(2) **Permitted Uses.** The uses permitted in the RL Zone are set forth in Table 29.701(2) below:

| USE CATEGORIES                                 | STATUS | APPROVAL<br>REQUIRED | APPROVAL<br>AUTHORITY |
|------------------------------------------------|--------|----------------------|-----------------------|
| TRADE USES                                     |        |                      |                       |
| Retail Sales and Services - General            | Y      | SP                   | ZBA                   |
| Entertainment, Restaurant and Recreation Trade | Y      | SP                   | ZBA                   |

\* \* \*

**Table 29.703(2)  
Urban Core Residential Medium Density (UCRM) Zone Uses**

(1) **Purpose.** This zone is intended to accommodate primarily single-family dwellings, while accommodating certain existing two-family dwellings and other uses customarily found in low-density residential areas, with exceptions added for mixed-use development deemed in-line with the character of the UCRM Zone.

(2) **Permitted Uses.** The uses permitted in the UCRM Zone are set forth in Table 29.703(2) below:

| USE CATEGORIES                                 | STATUS | APPROVAL REQUIRED | APPROVAL AUTHORITY |
|------------------------------------------------|--------|-------------------|--------------------|
| <b>TRADE USES</b>                              |        |                   |                    |
| Retail Sales and Services - General            | Y      | SP                | ZBA                |
| Entertainment, Restaurant and Recreation Trade | Y      | SP                | ZBA                |

\* \* \*

**Table 29.702(2)**  
**Residential Medium Density (RM) Zone Uses**

(1) **Purpose.** This zone is intended to accommodate primarily single-family dwellings, while accommodating certain existing two-family dwellings and other uses customarily found in low-density residential areas, with exceptions added for mixed-use development deemed in-line with the character of the RL Zone.

(2) **Permitted Uses.** The uses permitted in the RM Zone are set forth in Table 29.702(2) below:

| USE CATEGORIES                                 | STATUS | APPROVAL REQUIRED | APPROVAL AUTHORITY |
|------------------------------------------------|--------|-------------------|--------------------|
| <b>TRADE USES</b>                              |        |                   |                    |
| Retail Sales and Services - General            | Y      | SP                | ZBA                |
| Entertainment, Restaurant and Recreation Trade | Y      | SP                | ZBA                |

\* \* \*

## **Sec. 29.706. COMMERCIAL DEVELOPMENT IN TRADITIONALLY RESIDENTIAL DISTRICTS**

(1) Any conflicting provisions of Sections 29.700 through 29.705 notwithstanding, a commercial development is a commercial use permitted with a special use permit in selected residential zoning districts, in accordance with the Subdivision Regulations in Chapter 29 of the

**Municipal Code of the City of Ames, Iowa, subject to the following restrictions:**

- (a) No more than one commercial use shall be permitted on one lot as approved to Sections 29.701, 29.702, and 39.703 of the Municipal Code of the City of Ames, Iowa.**
  - (b) No more than three commercial uses shall be permitted on one square block approved pursuant to Section 29.701, 29.702, and 39.703 of the Municipal Code of the City of Ames, Iowa.**
  - (c) In addition to all permits required for construction and occupancy of a commercial dwelling, all requirements and standards pursuant to Section 29.802 of the Municipal Code of the City of Ames, Iowa and under the City of Ames building regulations.**
  - (d) A commercial establishment shall not negatively affect the health of the surrounding area including but not limited to noise pollution.**
  - (e) Any commercial establishment shall not have any outdoor lighting additional to such landscaping and decorative lighting as is usual, customary, and normally installed with respect to a dwelling.**
  - (f) A notice regarding the development must be sent to all residences within 2 blocks of the potential development site**
- (2) Commercial advertising signs or other signs for a commercial purpose are prohibited on the site of a commercial establishment located in a residential zoning district except that there shall be allowed a total of two signs, none of which shall be larger than two feet by three feet, bearing a message on only one side, and expressing no message other than the identity of the commercial establishment and the hours of operation of the model home/sales office.**

**\*\*\*"**

Section Two. All ordinances, or parts of ordinances, in conflict herewith are hereby repealed to the extent of such conflict, if any.

Section Three. This ordinance shall be in full force and effect from and after its passage and publication as required by law.

## **Appendix 2**

### **List of addresses of identified lots**

1208 STAFFORD AVE, AMES  
821 NORTHWESTERN AVE, AMES  
313 5TH ST UNIT 202, AMES  
703 BURNETT AVE, AMES  
3219 ELLIS ST, AMES  
1516 RIDGEWOOD AVE, AMES  
828 NORTHWESTERN AVE, AMES  
327 N RUSSELL AVE, AMES  
306 8TH ST, AMES  
1113 MAXWELL AVE, AMES

1429 RIDGEWOOD AVE, AMES  
606 NORTHWESTERN AVE, AMES  
1512 RIDGEWOOD AVE, AMES  
1501 SUMMIT AVE, AMES  
1121 N 3RD ST, AMES  
918 5TH ST, AMES  
3434 WOODLAND ST, AMES  
1409 RIDGEWOOD AVE, AMES  
626 9TH ST, AMES  
322 7TH ST, AMES

1111 IOWA AVE, AMES  
1202 CURTISS AVE, AMES  
1414 RIDGEWOOD AVE, AMES  
1445 SUMMIT AVE, AMES  
1505 SUMMIT AVE, AMES  
217 FRANKLIN AVE, AMES  
1328 KELLOGG AVE, AMES  
130 S BORNE AVE, AMES  
227 S KELLOGG AVE 229, AMES  
225 S KELLOGG AVE, AMES

616 13TH ST, AMES  
1411 RIDGEWOOD AVE, AMES  
1202 GARFIELD AVE, AMES  
118 FRANKLIN AVE, AMES  
622 DUFF AVE, AMES  
117 N OAK AVE, AMES  
301 WASHINGTON AVE, AMES  
1444 RIDGEWOOD AVE, AMES  
117 13TH ST, AMES  
328 WASHINGTON AVE, AMES

251 S FRANKLIN AVE, AMES  
206 STATE AVE, AMES